APPENDIX E to Special Conditions of Tender
Sample JV Proforma (Clause SCT 5 of the Special Conditions of Tender)

JV Proforma for Proposed Value of Works to be Undertaken by Each Participant / Shareholder in the Joint Venture (JV)

[To be submitted with the tender (for tenders using formula approach)]

Name of Tenderer: _____

Category of works[1]		**Proposed value of works (in Hong Kong dollar ($))[2]**			
		A	**B[3]**	**C[3&4]**	**D[3&5]**
		{Name of the lead participant / major shareholder} (to be inserted by the tenderer)	**{Name of the other JV participant / shareholder}** (to be inserted by the tenderer)	**{Name of the other JV participant / shareholder}** (to be inserted by the tenderer)	**{Name of the other JV participant / shareholder}** (to be inserted by the tenderer)
Proposed value of works	Roads and Drainage				
	Sub-Total				
Tendered total of the Prices[8]		{Summation of the totals of **A, B, C and D** to be inserted by the tenderer}			
Percentage Participation[9]		{ to be inserted by the *PM* designate after receipt of tender }	{ to be inserted by the *PM* designate after receipt of tender }	{ to be inserted by the *PM* designate after receipt of tender }	{ to be inserted by the *PM* designate after receipt of tender }
Forecast value of works[10]	Roads and Drainage	{ to be inserted by the *PM* designate after receipt of tender }	{ to be inserted by the *PM* designate after receipt of tender }	{ to be inserted by the *PM* designate after receipt of tender }	{ to be inserted by the *PM* designate after receipt of tender }
	Sub-Total	{ to be inserted by the *PM* designate after receipt of tender }	{ to be inserted by the *PM* designate after receipt of tender }	{ to be inserted by the *PM* designate after receipt of tender }	{ to be inserted by the *PM* designate after receipt of tender }
Forecast total of the Prices[11]		{ to be inserted by the *PM* designate after receipt of tender }			

Notes:

1. The tenderer shall not add any additional category of works to, or amend or delete any category of works in the list of categories set out in this JV Proforma.
2. Each proposed value of works to be undertaken by each participant / shareholder shall be inserted as a figure in the unit of Hong Kong dollar, **otherwise the tender shall be rendered invalid**. Any other descriptions, such as **"jointly", "fully integrated" etc. are not acceptable**.
3. The tenderer's attention is drawn to SCT 5(6). For a participant / shareholder other than the lead participant or major shareholder, even if it is not enlisted in the relevant category of the Approved List / Approved Specialist List as required under SCT 5(6)(a), it may nonetheless be considered technically capable if it satisfies the requirement as stated in other sub-clauses of SCT 5(6).
4. Delete as appropriate or add additional column(s) as necessary.
5. Delete as appropriate or add additional column(s) as necessary.
6. This category of works is included in ACC C3 which stipulates that the specified part(s) of the *works* must be undertaken by a contractor listed on the respective category of the Approved Specialist List. In case the tenderer intends to subcontract this category of works, the space for the proposed value of this category of works shall be left blank and the tenderer shall distribute the value of this category of works among other categories of works. In case a value is inserted in the space for this category of works for any participant / shareholder, it is presumed that the part of the *works* will be undertaken by that participant / shareholder. The relevant participant / shareholder needs to satisfy the requirement as stated in SCT 5(5) or SCT 5(6), as the case may be.
7. Correction Rules no. 1(c) and 1(f) do not apply to this category of works.
8. The "tendered total of the Prices" in the JV Proforma shall tally with the "tendered total of the Prices" inserted in the Form of Tender. The tenderer shall ensure that there are no uncategorised works. The value of those parts of the works that are not directly related to any category of works, e.g. preliminaries, personnel, insurance, safety etc. shall be distributed among the categories of works set out in the JV Proforma by the tenderer. For the avoidance of doubt, the value of those parts of works that are intended to be subcontracted out shall be included / distributed among the categories of works set out in the JV Proforma by the tenderer.
9. The percentage participation of each participant / shareholder shall be calculated by reference to the corrected sub-total of proposed value of works to be undertaken by such participant / shareholder against the corrected tendered total of the Prices, and inserted by the *Project Manager* designate in this JV Proforma. In case the percentage participation stated elsewhere in the tenderer's submission does not tally with this JV Proforma, the percentage participation calculated as per this JV Proforma shall prevail.
10. The forecast value(s) of works to be undertaken by each participant / shareholder shall be calculated by multiplying the proposed value(s) of works by the ratio of the forecast total of the Prices in the Grand Summary of *activity schedule* to the tendered total of the Prices (both after correction if applicable), and be inserted by the *Project Manager* designate.
11. The "forecast total of the Prices" in the JV Proforma shall tally with the forecast total of the Prices in the Grand Summary of *activity schedule* (after correction if applicable), and be inserted by the *Project Manager* designate.

Correction Rules for JV Proforma

For lump sum contracts

1. Where:

(a) no value or an illegible entry is inserted in the space for any proposed value of works in the JV Proforma, the proposed value of works shall be marked as zero;

(b) all entries for the proposed values of works of any particular participant / shareholder (i.e. the whole column in the table) have no value or deemed zero as per sub-paragraph (a) above, the tenderer shall be considered as having failed to comply with the essential requirement in GCT 21(iv) and **its tender shall be rendered invalid**;

(c) all entries for a category of works set out in this JV Proforma (i.e. the whole row in the table) have no value or deemed zero as per sub-paragraph (a) above, the tenderer shall be considered as having failed to comply with the essential requirement in GCT21(iv) and **its tender shall be rendered invalid**;

(d) an additional category of works has been added by the tenderer, the value inserted to the additional category shall be distributed to all categories of works set out in this JV Proforma in proportion according to the values of those categories inserted in the JV Proforma by the tenderer. The additional category of works shall then be discarded;

(e) any category of works in the list of categories set out in the JV Proforma has been amended by the tenderer, such amendment shall be discarded and any proposed value of works inserted in the relevant space shall be deemed to refer to the original category;

(f) any category of works in the list of categories set out in the JV Proforma is deleted, the proposed value of works for such category shall be marked as zero. In such a case, the tenderer shall be considered as having failed to comply with the essential requirement in GCT21(iv) and **its tender shall be rendered invalid**.

2. Errors in the casting of any proposed value of works in the JV Proforma (after correction under paragraph 1 above, if any) shall be corrected. Thereafter, the sub-total of proposed value of works to be undertaken by each participant / shareholder and the tendered total of the Prices in the JV Proforma shall be corrected.

3. The tendered total of the Prices inserted in the Form of Tender shall take precedence over the tendered total of the Prices inserted in the JV Proforma. In case of discrepancy, the tendered total of the Prices in the JV Proforma shall be corrected to match the one inserted in the Form of Tender in the manner set out in paragraph 4 below.

4. After correcting all the errors in accordance with paragraphs 1 and 2 above, the difference between:

(i) the tendered total of the Prices inserted in the Form of Tender, and

(ii) the tendered total of the Prices inserted in the JV Proforma

shall be calculated as a plus percentage if 4(i) is greater than 4(ii), or as a minus percentage if 4(i) is less than 4(ii). The plus or minus percentage shall then be applied

to the proposed value of works of each category of each participant / shareholder inserted in the JV Proforma. The sub-total of proposed value of works of each participant / shareholder shall also be corrected accordingly.

5. After correcting all the errors in accordance with paragraphs 1 to 4 above, the percentage participation of each participant / shareholder shall be calculated by reference to the corrected sub-total of proposed value of works to be undertaken by such participant / shareholder against the corrected tendered total of the Prices.